Hotel with a request to sign on the dotted line.[4] The UPA presumably wanted to avoid the formation of a BJP–JDU government at all costs.

Ordinarily, a government may have waited for the President to return from his foreign trip or, at the least, left more time for the President to consider the file. Absent this luxury, Kalam had three options, each of which raised its own complications. He could return the file to the UPA government for reconsideration, although he would be obliged to sign if the file were sent back to him. Alternatively, he could have waited until he returned to Delhi – but this would have involved a delay of eight days. In that time, it was likely that the government would be formed in any event. The third option was simply to sign the file, in spite of any misgivings about whether it was appropriate to dissolve the assembly in the circumstances. In a decision that he would live to regret, Kalam chose option three.

The Bihar Assembly was dissolved within hours, and pandemonium broke loose. Ram Vilas Paswan, the president of the LJP, expelled seven of his colleagues for anti-party activities. The BJP organized dharnas and road blockades in the state following the announcement. Describing the dissolution as a 'fraud on the Constitution and murder of democracy',[5] it organized a fairly successful statewide strike in protest the next day. Senior leaders from the NDA demanded early elections in a meeting with the Election Commission.[6] Now that the assembly had been dissolved, the NDA didn't want the UPA to govern Bihar through President's rule and wanted fresh elections called at the earliest opportunity.

Together with its political strategy, the NDA's legal strategy was also set into motion. Four writ petitions were filed in the Supreme Court by candidates who had been elected to the dissolved assembly – one each by members of the BJP and the JDU, the third by a 'rebel' LJP member and the fourth by an independent candidate. They contended that the President's proclamation dissolving the assembly was unconstitutional, as the President could not dissolve an assembly that had not yet been convened – not least on the basis of a governor's report that was grounded in mere suspicions of horse-trading.